

18. Explain the POCSO Act, 2012 and its important features. [Ans: 3:04 + 3:04:1]
19. Discuss the 'Prohibition of Child Marriage Act, 2006' with the provisions it contained. [Ans: 3:05 + 3:05:1 + 3:05:2 + 3:05:3]
20. Discuss the Child Labour Prohibition and Protection Act, 1986 and its salient features. [Ans : 3:06 + 3:06:1]
21. Discuss the 'National Policy for Child Protection', its vision and the guidelines it has provided. [Ans : 3:07:1 + 3:07:1:01]
22. Discuss the Tamilnadu State Policy for Child Protection. [Ans : 3:07:2]
23. Discuss VISHAKA case and the guidelines provided by the Supreme Court in that case. [Ans : 3:08:3:01 to 3:08:3:03]
24. Discuss the 'Suppression of Immoral Traffic in Womens and Girls' Act, 1956' and the features it contains. [Ans : 3:09 + 3:09:1 + 3:09:2 + 3:09:3]
25. Discuss the role and functions of U.N. Committee on the Rights of Children. [Ans : 3:12]

UNIT - IV

CHILD FRIENDLY SCHOOLS AND ROLE OF TEACHERS

4:00 Introduction

On any given day, more than one billion of the world's children go to school. Whether they sit in buildings, in tents or even under trees, ideally they are learning, developing and enriching their lives. For too many children, though, school is not always a positive experience. Some endure difficult conditions, like extremely hot or cold temperatures in the classroom or primitive sanitation. Others lack competent teachers and appropriate curricula. Still others may be forced to contend with discrimination, harassment and even violence. These conditions are not conducive to learning or development, and no child should have to experience them. A school is considered "child friendly" when it provides a safe, clean, healthy and protective environment for children. At Child Friendly Schools, child rights are respected, and all children - including children who are poor, disabled, living with HIV or from ethnic and religious minorities are treated equally.

In this unit, child friendly schools: Concept and importance, Role of teachers in safeguarding the rights of children in schools, Importance of child protection policy in schools, Creating space and opportunity for children to participate and express their voices / opinions, Importance of child rights clubs in schools, Role of School Management Committees (SMCs), and challenges of teachers as child rights practitioners are to be discussed in detail.

4:01 Child Friendly Schools

A Child Friendly School is a school that recognizes and nurtures the achievement of children's basic rights, Child Friendly Schools work with all commitment-holders, especially parents/guardians of students, and values the many kinds of contributions they can make in seeking all children to go to school, in the development of a learning environment for children and effective learning according to the children's current and future needs. The learning environments of Child Friendly Schools are characterized by equity, balance, freedom, solidarity, non-violence and a concern for physical, mental and emotional health.

These lead to the development of knowledge, skills, attitudes, values, morals so that children can live together in a harmonious way. A child friendly school nurtures a school-friendly child, support children for development and a school-friendly community.

Summing up, it could be said that a child-friendly school revolves around the goal of making the basic education experience engaging and stimulating for children aged 6-12 years. The goal also requires schooling to be of good quality and accessible to all children.

4:01:1 Six Essential Aspects of Child-friendly School Environment

Child-friendly school must reflect an environment of good quality characterised by the following six essential aspects.

1. Inclusive of Children

- ✦ Does not exclude or discriminate any one on the basis of difference.
- ✦ Provides education that is free and compulsory, affordable and accessible, particularly to the disadvantaged children.

- ✦ Respects diversity and ensures equality of learning for all children (e.g. girls, working children, children of minority groups and those affected by HIV/AIDS, disabilities, victims of exploitation and violence).
- ✦ Responds to diversity by meeting the differing needs of children based on gender, social class, ability level etc.

2. Effective for Learning

- ✦ Promotes good quality teaching and learning processes with individualized instruction appropriate to each child's developmental level, abilities, and learning style and with active, cooperative, and democratic learning methods.
- ✦ Provides structured content and good quality learning materials and resources.
- ✦ Enhances teacher capacity, morale, commitment, status, and income and their own recognition of child rights.
- ✦ Promotes quality learning outcomes by defining and helping children learn what they need to learn and teaching them how to learn.

3. Healthy and Protective of Children

- ✦ Ensures a healthy, hygienic, and safe learning environment, with adequate water and sani-tation facilities and healthy classrooms, healthy policies and practices (e.g., a school free of drugs, corporal punishment, and harassment), and the provision of health services such as nutritional supplementation and counseling.
- ✦ Provides life skills-based health education.
- ✦ Promotes both the physical and the psychosocio-emotional health of teachers and learners.
- ✦ Helps to defend and protect all children from abuse and harm.
- ✦ Provides positive experiences for children.

4. Gender-sensitive

- ✦ Promotes gender equality in enrolment and achievement.
- ✦ Eliminates gender stereotypes.
- ✦ Guarantees girl-friendly facilities, curricula, textbooks, and teaching learning processes, socializes girls and boys in a non-violent environment.

- ✦ Encourages respect for each others' rights, dignity, and equality.

5. Involved with Children, Families and Communities

- ✦ **Child-centred:** Promoting child participation in all aspects of school life.
- ✦ **Family-focussed :** Working to strengthen families as the child's primary care-givers and educators and helping children, parents and teachers, establish harmonious relationship.
- ✦ **Community-based :** Encouraging local partnership in education acting in the community, for the sake of children, and working with other actors to ensure the fulfillment of children's rights.

6. Effective and High Quality learning Environments

A quality learning environment promotes high quality teaching of relevant knowledge and skills - through instruction that is adopted to meet the students' needs and encourage children's active engagement,

rather than relying on traditional rote learning approaches, i.e. classroom process should not be one in which children are passive recipients of knowledge dispensed by a sole authority, the teacher; rather it should be an interactive process in which children are active participants in observing, exploring, listening, reasoning, questioning and "coming to know".

When children are engaged in participative learning and encouraged to do well and when presented with interesting learning opportunities, they are more likely to stay in school and succeed academically.

Thus, in a CFS the environment is conducive to learning, the staff members are friendly, and the health and safety needs of the children are adequately met.

4:01:2 Key Principles Forming the Basis of Child Friendly Schools

Child Friendly Schools (CFS) are based on the following four key principles.

- i) Child centeredness

- ii) Democratic participation
- iii) Inclusiveness
- iv) Healthy and Protective Environment

i) **Child Centeredness**

In Child Friendly Schools, teachers are to be trained not only in reaching out the content to students but also on child rights. Teaching and learning methods focus on child-centered approach. Lessons for children include essential life skills aimed at keeping them safe and building the skills they will need to fulfill their potentials and contribute fully to society. School should compensate for home based problems and disadvantages.

ii) **Democratic Participation**

Participation of all students in all activities of the school including curriculum design, school management and school design / architecture; involving families and the community in the activities of the school and also to develop and improve the school's environment, strengthening school governing bodies by giving due representations for parents and members of the local community.

iii) **Inclusiveness**

- Respecting diversity and ensuring quality of learning for all children;
- Respecting diversity and ensuring equality of learning for all children;
- not excluding or discriminating anyone on the basis of religion, caste, gender, socio-economic level, disability etc.
- responding to diversity by meeting the differing needs of children including the ability level;
- equity in relation to access, quality of education and opportunities to participate in the school activities, curriculum design and school management.

iv) **Healthy and Protective Environment**

- Ensuring a healthy, hygienic and self-learning environment, with adequate water and sanitation facilities, healthy classroom, healthy policies and practices (like avoiding corporal punishment, physical and mental harassment of learners).
- providing health services like nutritional supplementation and counselling regarding physical and mental health.

- providing life skills-based health education.
- helping to defend and protect all children from abuses and harm.
- providing for play ground, play materials, restrooms (toilets) in adequate number for boys and girls.

4:02 Importance of Child Friendly Schools

Importance of Child Friendly Schools are:

- i) They ensure inclusive enrolment and equal treatment of all school-aged children in safe, healthy, protective and positive environments;
- ii) They promote learning and the acquisition of knowledge, capacities and attitudes through relevant curriculum and effective teaching and learning; and
- iii) They strive for democratic participation of all students, teachers, families and the local society, making the school a harmonious learning community with strong leadership from school managers.

Though these elements appear to be separate, all the above three elements of the

UNICEF basic education model are inter-related. Child-friendly learning is recognized globally as the key to delivering quality basic education to all children. Child-friendly, equitable and quality basic education helps all round development of children in terms of physical, moral, social, emotional and intellectual well-being.

4:03 Role of Teachers in Safeguarding the Rights of Children in Schools

4:03:1 Safeguarding

Safeguarding children is a process of protecting children from harm, any form of maltreatment, abuse, exploitation or neglect as well as addressing the wider issues that can put children at risk. This includes providing safe environment in the classroom and playground, promoting good behaviour and discipline and developing positive relationship with students.

Safeguarding is defined as a practice that involves the following actions and aims.

- i) Protecting children from maltreatment.
- ii) Preventing the impairment of children's health and/or development.

- iii) Ensuring that children can grow up in environments that consistently provide safe and effective care.
- iv) Taking action so that all children have the best outcomes.

Whilst the general role of a teacher revolves around educating students, the role of a teacher as a safeguarding professional is to work in a way that embodies and prioritises the above mentioned intentions.

All the staff in the school should be aware of their safeguarding responsibilities and ensuring that any concerns about the welfare or safety of students are reported and addressed promptly. In some cases this may involve referring a student to external agencies for further support.

4:03:2 Teachers Safeguarding Children's Rights

The role of a teacher in safeguarding goes beyond just classroom learning and involves being aware of a range of safeguarding risks and warning signs. Teachers are responsible for students' welfare and since they spend a lot of

time with them, they are ideally placed to notice when something seems wrong,

(i) Child-centered Approach

One of the key roles that a teacher plays in safeguarding is adopting child-centered approach in their work. This means that the needs and best interests of the child are always considered and often prioritised when making decisions about their lives or working with their family to find the best outcomes.

A child-centered approach works around the idea that a child is always better off when looked after by their family, as long as this is a safe place for them. Taking a child from its family is a last resort, unless the child is in immediate danger.

This approach is based on what children said about what they want from safeguarding professionals, which includes understanding, vigilance, respect, support, advocacy and protection. **If you work with children, you have a responsibility to speak and listen, take them seriously and work with them collaboratively to support their needs.**

ii) Early Help

All teaching staff should know the signs of a child that may benefit from help and be ready to start and investigate as soon as a problem emerges. They are responsible for understanding the situations that indicate early help may be required and should look out for the **warning signs** in all their students. These **can include becoming** withdrawn, unexplained changes in behaviour, aggression and more, all of which can be key indicators that a child is experiencing abuse or neglect in some form (such as physical violence and harm, neglect by parents or teachers, sexual exploitation and abuse, discriminatory treatment etc.).

iii) Teachers' Responsibilities

Teachers need to be able to respond appropriately if a child comes to them directly and shares that he/she is being abused, mistreated, or exploited. This involves listening to the child and taking them seriously, letting them know they will be kept safe and helping them feel that they have done the right things. While speaking to the affected child, the teacher should not indulge in

interrogation by asking leading questions but let the child explain in his / her own words.

Many children find it hard to talk about situations where safeguarding is required. So teachers are also responsible for deciding how they are going to build relationships with students so that they are seen as trusted figures.

Teachers should know whom to report safeguarding issues in their school and also understand the importance of keeping these situations confidential and only involving other relevant members of the staff. Even if they don't make a referral themselves, teachers should also know which additional services may get involved and how they may have to contribute to this.

4:04 Role of School in Child Protection

Schools have a key duty as duty-holders to ensure the well-being of all children studying in them. For this to happen schools need to lay down necessary structures to ensure the effectiveness of child protection policies and procedures.

Child protection is a process of protecting individual children from any form of harm,

maltreatment or abuse. It involves measures, structures and policies laid down by the organisation /institution, designed to prevent and respond immediately and effectively. Protection is about improving the safety of children.

Structures/Systems to Protect Children in Schools

- ◆ Having a **Designated Liason Person (DLP)** in place for dealing with child protection.
- ◆ Having a standard reporting procedures and ensuring that they are followed.
- ◆ Ensuring any child protection cases identified and referred promptly for the relevant services and authorities.
- ◆ Having procedures for checking staff before they work with children.
- ◆ Having a child protection policy which includes procedures to be followed if a teacher or other member of staff is accused of harming a child.
- ◆ Making sure staff are trained to identify signs of abuse including what to do if they or someone else is worried about a child.

The school should teach children how to protect themselves. Personal, social and health education (PSHE) lessons explain

- ◆ risky behaviour.
- ◆ appropriate and inappropriate physical contact
- ◆ dealing with pressure.

Dealing with Suspected Cases of Abuse

School staff should listen to and work closely with parents to make sure children feel safe and protected in the social environment.

If a child is suspected being abused, it should be reported to police or local social services. If you work in a school, you should tell the teacher responsible for child protection. They will take suitable action based on procedures set out by the local safeguarding children board, letting the authorities know where it is required.

Once the authorities are told they will decide what to do. The school's role is then limited. School staff will not take part in an investigation, though they may be called on to give information. They may also be asked to give support to the child or young person.

Preventing Inappropriate Relationships in School

It is crime to have a sexual relationship with a child under the age 16. It is also an offence for an adult to have a sexual relationship with a young person under 18 if the adult is in a '**position of trust**' with that young person.

Position of trust covers the relationships between school/college staff and students. It applies as long as the young person is under 18. It also applies to those who are over the age of legal consent, though there are some defenses which can apply in limited circumstances.

Vetting of School Staff

Every one employed in a school is to be vetted by a criminal record check. The school needs to train staff and volunteers how to identify abuse. This includes knowing what to do if they or someone else is worried about a child.

4:05 Importance of Child Protection Policy in Schools

Schools are often referred to as a child's second home. It is the school where the actual

foundation of a kid's life is laid. But if this basic foundation goes weak, it becomes really hard for children to grow into confident, responsible adults. That is why, it is important that schools not only promote social and creative learning but also provide an encouraging, well-protected environment to children, where they feel safe and sound. But in today's world, we almost everyday come across continual instances of violence against children. Everything from physical abuse and molestation to abduction and murders are making the society and also the schools no longer appear as a safe place for kids. As such, it is crucial that parents, teachers and schools step in and look for ways to keep kids safe from the preying eyes.

With the younger generation massively prone to abuse and violence of all kinds, it is high time that schools give highest priority for safety of children. And for this there is a need for the schools to implement firm child protection policy to analyse every situation and devise ways to keep children safe and secure.

In general, child protection policies are intended to strengthen the environment,

capacities, and activities to prevent / protect children from any kind of abuse, exploitation, violence, neglect and consequences of conflict. In that sense, having an appropriate child protection policy enables schools to provide a safe learning environment to kids, by identifying distressed and vulnerable pupils and taking suitable action to ensure that they are safe as well as happy at all times. Ideally, a child protection policy should touch upon the following facets.

i) Empowering Children to stay conscious of their safety

Children should be taught to express their concerns, fears, and needs. It is always essential to teach kids about **'good touch'** and **'bad touch'**. They should know what is right and wrong and that no one can control, dominate or threaten them into doing what is not right. They should know when and where to say 'no'. Children should be made aware of what is appropriate and what is not, so that they know what to do and how to act to save themselves in different situations.

ii) Creating a safe learning environment

It is necessary that schools should have a

student protection plan in place so as to prevent bullying, discrimination, or any sort of violence. There should also be child counsellor to guide / mentor students and parents, helping them understand issues like bullying, violence, sexual abuse etc. Having such plans and policies enable the school authorities to address the fears, vulnerability and hurdles faced by students and aid them to better handle the issues that need sensitive attention. Moreover, there should be a suggestion / complaint box in schools that can help students and parents bring issues to the attention of the authorities, without being singled out or harassed. Further, the child protection policy should also include procedures to be followed if a teacher or members of staff is accused of harming a child. The school should have a set procedure for checking staff before they are allowed to work with children. If any member of the staff in the school suspects that a child is being abused, he / she should report it to the headmaster / principal who will ultimately decide whether to seek the assistance of external agencies or refer it to relevant authorities.

iii) Training and workshops

Quality training and workshops conducted

through experts and resource persons help parents, teachers and the management to have a good knowledge about various issues and how they should be handled. Also, having children's clubs and workshops at school can provide more awareness to the students, parents and teachers alike. A healthy and open conversation with one another can often enable the teachers to identify potential flashpoints and take early action to save children from any harm.

Amidst the heinous incidents committed against innocent children, it is necessary for schools to have a child protection policy and it should take into account all factors including transportation, infrastructure, medical facilities, sanitation and forms of punishments and abuse. Schools should carry out routine check-ups in every nook and corner of the school to ensure that no child is mistreated and no place is left deserted within the campus. 24x7 CCTV Surveillance facilities with security personnel monitoring the premises making it more safe and secure for children. All the features of the child protection policy should be made clear to the parents, students and visitors.

4:06 Creating Space and Opportunity for Children to Participate and Express their Voices / Opinions

In democratic societies, children and young people have the right to be heard and not to feel afraid to express themselves. Schools have a key role in upholding this principle. At the sametime, students need to be aware of both their rights and responsibilities.

Learning about human rights and democracy is the fundamental first step for becoming an informed and responsible citizen. Students need to participate in activities such as debating and community work. Skills, knowledge and critical understanding must be coupled with attitudes and values that form part of democratic culture. All this should be promoted through a whole-school approach.

4:06:1 Meaning of Student Voice

'Student Voice' is the right of students to have a say in matters that affect them in their schools, and to have their views and opinions taken seriously. It encompasses all aspects of school

life and decision - making where young learners are able to make meaningful contribution, adapted to their age and stage of development. It stretches from informal situations in which students express opinion to their peers or staff members to participate in democratic structure or mechanisms, such as students parliaments and consultations.

Student voice can vary from simple self-expression to taking on leadership role in an aspect of school life. It can be categorized according to **6-fold typology** of increasing complexity and responsibility.

- i) Expression – Voice an opinion
- ii) Consultation – Asked for an opinion
- iii) Participation – Attend and preferably play an active role in a meeting
- iv) Partnership – Have a formal role in decision-making
- v) Activism – Identify a problem, propose a solution, and advocate its adoption
- vi) Leadership – Plan and make decisions

Given that the relevant activities are age appropriate, student voice can be expressed (that is possible only in the case of students from upper primary classes and above) anywhere in the school community, in and out of lessons, e.g; through inviting students to comment on teaching approaches and techniques, suggest topics for class discussion, participate in school policy committees and/or consultations, or just join in a casual conversation on school matters with a teacher or other staff members in their free time.

4:06:2 Importance of Student Voice at School

Student voice is rooted in the concept of children's rights and human rights. In particular, Article 12 of the **United Nations Convention on the Rights of the Child (UNCRC)** establishes the right of every child to have a say in matters which affect them, whether in or out of school, as well as to be involved in decisions that affect them. More generally, the UNCRC includes other articles that seek to increase students' voice, including the right to seek and receive information, to express their own views and to associate with others.

Student voice can have many **benefits both for schools and the wider society** – for example:

- Participation in school decision-making **fosters a sense of citizenship** in young learners, helping them to develop important competencies, e.g: cooperation and communication skills, self-efficacy, responsibility, civic-mindedness and respect for the value of democracy.
- Contributing to their school community gives young learners **a sense of belonging, develops self-esteem and can lead to more respectful relationships**. This has a positive influence on school discipline and helps to reduce the incidence of problems such as drop-out, bullying, substance abuse and radicalisation.
- Engaging students in active learning activities in class has a positive effect not only on the **classroom atmosphere**, but also on the **educational achievements** of students and their peers.

4:06:3 Challenges in the Development of Student Voice in Schools

There are a number of major areas of

challenge faced in the development of student voice in schools.

The first challenge relates to **attitudes of other stakeholders**. Parents, teachers, school leaders and others who have traditional views of schooling sometimes feel that children and young people should be 'seen and not heard' in school. They think respect for others and for authority are best developed in a culture of deference. To counteract attitudes of this kind of school leaders, need to introduce elements of student voice gradually, explaining the process clearly to stakeholders and sharing the successes with them when they take place.

The Second major area of challenge is **ensuring that student participation is genuine participation** and not tokenism or "window-dressing". This means giving students opportunities to make a real difference to their lives and the lives of other school stakeholders, and helping staff to be more open to sharing their decision-making with young learners.

A third area of challenge is **the difficulty of making opportunities for student voice equally**

open to all students. The problem arises to some extent on account of the perception that student voice applied only to formal school structures, like pupil parliaments. For stakeholders with more traditional attitudes towards teaching and learning, it can be difficult to see student voice as integral to, rather than separate from the learning process in classrooms.

4:06:4 How Can Schools get Active in Developing More Opportunities for Student Voice

There are a number of ways in which schools can develop more opportunities for student voice. These include:

- ✦ Encouraging teaching staff to consider how they can **involve students in the learning process in the classroom**, e.g., by creating more opportunities for students to express their own opinions, debate issues, make suggestions or draw up classroom rules;
- ✦ **Creating mechanisms for student consultation** on issues affecting school life, e.g., through questionnaires, suggestion boxes, surveys or focus groups;

- ✦ Establishing **formal bodies or procedures**, e.g., pupil parliaments, student committees and commissions, or 'circle time';
- ✦ Inviting **students to sit on school policy-development committees**, e.g., on gender equality, pupil safety or health and well-being,
- ✦ Teaching young learners **the skills of public speaking and debate**, e.g., discussion skills, active listening or argumentation;
- ✦ Providing **opportunities for peer-led activities**, e.g., peer teaching, peer assessment or peer counselling.

4:07 Child Rights Clubs in Schools and their Importance

4:07:1 What are 'Child Rights Clubs' in Schools?

Child Rights Clubs (CRCs) are child-led groups established to empower children, educate them about their rights and responsibilities, build their capacity to develop into great leaders, and encourage them to become active agents for change. To empower them to become their own

actors in protecting and promoting their rights. CRCs present an opportunity and platform for child-led initiatives and activities where children voice and address any issues that affect them.

4:07:2 Importance of Joining in Child Rights Club

- Children get to learn about their rights, the risks and dangers (Child protection concerns within their communities who they can contact if they or their peers ever need help).
- Children get to have increased awareness of their rights and responsibilities and build their confidence and understanding about how to report incidents of abuse and advocate for themselves and their peers.
- Children get to access information and experiences that enable them to grow and develop better.
- Allows children to develop leadership skills within an environment of their peers.
- Fosters creative thinking among children.
- Children have the opportunity to share on issues affecting them either in schools or in the community and how to resolve them.

- Children learn to make informed decisions and provide sound opinions to issues affecting them.
- Children get to learn on how to become more responsible citizens among other national values.
- Children build their confidence among other skills on living with others.
- Children gain confidence in expressing their views, come up with Child led initiatives to empower self and others.

4:07:3 Possible Child Rights Club Activities

- Engaging children in role plays and skill-building exercises around child rights and protection themes.
- Children participating in joint trainings with key child protection actors in schools and communities to strengthen referral and service linkages for reporting and follow up on cases of abuse and neglect.
- School-wide and inter-school child protection events, including music, dance, drama, sports, mural painting, school gardens, public speaking, and savings clubs.

- Children participating in joint feedback meetings at community; sharing feedback with duty bearers and community members; sensitising peers from schools with no CRC.

4:07:4 Formation and Management of Child Rights Club

Child Rights Clubs are important avenues for encouraging child protection education for children of both primary and secondary schools as well as communities. Child participation at the centre in the establishment of the child rights clubs. Child Rights Clubs are directly run by school children. CRC is supported by the patrons who are the school teachers and responsible for guiding members (children). Participation in CRC is always voluntary. Children willingly choose to join the CRC as opposed to being chosen by the teachers. The interests of the children direct the club activities. Club members are at liberty to discuss and decide what their activities will be.

Membership of the Club :

Each CRC has a maximum membership of 30 members, to ensure proper management and

adequate participation. In schools where membership is more than 30, children will be guided by the patron to form a new CRC and sessions carried out concurrently.

Selection of Leaders:

Leadership of the CRC consists of a

- i) Chairperson
- ii) Vice-Chairperson
- iii) Secretary
- iv) Vice-Secretary

The above four are referred to as **executive members** who coordinate the affairs of a CRC for a period of 1 year. Selection of executive members will be transparent. CRCs meet atleast once in a week to deliberate on thematic issues affecting them.

4:07:5 Functions of Child Rights Clubs in Schools

- They give children an opportunity to speak out on issues affecting them.
- They also give children a chance to speak on behalf of other children.

- Allows children to know types of child abuse in and around school communities.
- Helps children to know cases to be reported when arises.
- Enables children to have a picture on channels of handling cases.
- Allows children to nurture their talents in order to unleash their potential and abilities.
- Equip children with skills and knowledge that will help them take care of themselves.

4:07:6 Principles of Participation in Child Rights Clubs

- **Equal participation and Inclusion** : All children regardless of their status, ethnicity, age, gender, ability etc. have equal opportunity to participate in the CRC.
- **Gender Equity** : Both male and female members of the CRC have fair and equal opportunities to participate and lead in CRC activities.
- **Non-discrimination** : No child should be denied their right in CRC on any ground. Every child has equal opportunity regardless of the child's

gender, race, ethnicity, nationality, religion, disability, parentage, sexual orientation or other.

- **Voluntary** : Participation in CRC will not be forced on any child. A child has the right to decide whether or not to participate and when to participate.
- **Safety** : No child should be exposed to actual or potential abuse or exploitation by participating in the CRC activities.

4:08 Role of School Management Committees

The School Management Committee (SMC), constituted under the Right to Education Act 2009 plays an important role in ensuring accountability in India's education system, especially in Government schools. The Act envisions the SMC as a decentralized governance model which empowers them to keep track and monitor functioning of the schools and oversee that the school grants are used effectively.

The SMCs consist of representatives of the local authority, parents or guardians of students, and the principal and teachers of the school.

Three-fourths of SMC members must be parents or guardians and half must be women.

SMCs play a pivotal role in developing the tri-annual School Development Plans and annual work plans for the schools in every district and subsequently for every state of India. The RTE Act also highlights the critical role of parents as part of SMCs for developing a sense of ownership towards good education of their child and for strengthening and improving performance of schools in India.

Overall, SMCs focus on holistic development of the schools, which not only accounts to ensure good school infrastructure, but also supervision/monitoring of finance, management, academic progress of children, with equal participation and say, bringing transparency in India's education system.

4:08:1 Composition of School Management Committee

As per the "Right to Free and Compulsory Education Rules 2010":

1. A School Management Committee shall be constituted in every school, other than an

unaided school, within its jurisdiction, within six months of the appointed date (Date on which the Act came into force), and reconstituted every two years.

2. Seventy five percent of the strength of the School Management Committee shall be from amongst parents or guardians of children.
3. Provided fifty percent of committee members shall be women.
4. Provided further that proportionate representation shall be given to the parents or guardians of the children belonging to disadvantaged group and weaker section.
5. The remaining twenty five percent of the strength of the School Management Committee shall be from amongst the following persons .
 - one third members from amongst the elected members of the local authority (Such as Municipal Council, Village Panchayat etc.) to be decided by the local authority.
 - one third members from amongst teachers from the school, to be decided by the teachers of the school.

- one third from amongst local educationists/ children in the school, to be decided by the parents in the Committee.
6. To manage its affairs, the School Management Committee shall elect a Chairperson and Vice Chairperson from among the parent members. The Head teacher of the school or where the school does not have a head teacher, the senior most teacher of the school shall be the ex- officio Member-Convener of the School Management Committee.
 7. Where there are two or more schools in a panchayat, the panchayat president will be the member of School Management Committee of one of the schools, remaining schools shall have ward members as members of the School Management Committee.
 8. The School Management Committee shall meet at least once a month and the minutes and decisions of the meetings shall be properly recorded and made available to the public.

Composition of School Management Committee is as follows:

Category	No.	Position	Preference
Parent (PTA) Member	1	Chairman	Woman
Parent of CWSN/ vulnerable	1	Vice-Chairman	Member (Preferably Chair Person)
Head Master / Headmistress	1	Convener	
Teacher Representative	1	Member	Member-1
Parents including from disadvantaged group & weaker sections	12	Member	Woman Members-7
Elected Member of Local Body	2	Member	Woman Member-1
Educationist / Philanthropist / Retired Official	1	Member	Member-1
Self-Help Group Member (Parent)	1	Member	Woman Member-1
Total	20		

Note :

1. In general, out of 20 members, parents should be 75% (i.e. 15 members should be parents).
2. Out of 20 members, 50% should be women (i.e. 10 members should be women)

4:08:2 Functions of School Management Committee

The School Management committee shall perform the following functions namely

(A) Monitor the Functioning of the School

- i) Ensure the regularity and punctuality in attendance by teachers of the school.
- ii) Assess the learning ability of each child and accordingly, supplement additional instructions if any required.
- iii) Ensure the enrolment and continued attendance of all the children from the neighbourhood of the school.
- iv) Bring it to the notice of the Local Education Authority, any deviation from the right of the child, in particular mental and physical harassment of the children, denial of admission and timely provision of free entitlements.
- v) Communicate in simple and creative ways to the population in the neighbourhood of the school, the rights of the child as enunciated in the Act,

as also the duties of the appropriate government, local authority, school, parents and guardian.

- vi) Ensure that no child shall be liable to pay any kind of fee or charges or expenses which may prevent him or her from pursuing and completing the elementary education.
- vii) Identify the needs, prepare a plan, and monitor the implementation of the provisions, where a child above six years of age has not been admitted in any school or though admitted, could not complete his or her Elementary Education, then, he or she shall be admitted in a class appropriate to his or her age.
- iii) Monitor the identification and enrolment of CWSN and mobilize facilities for education of children with disability, as per equal opportunities, protection and full participation Act 1995 and ensure their participation in and completion of Elementary Education.
- x) List out specifications for equitable quality of education in a school.
- o) Monitor the implementation of the mid-day meal in the school.

- xi) Ensure that no teacher shall engage himself or herself in private tuition or private teaching activity.
- xi) Monitor that teachers are not burdened with non-academic duties other than those specified in section 27 of the RTE Act. No teacher shall be deployed for any non-educational purposes other than the decennial population census, disaster relief duties or duties related to elections to the local authority or the state legislatures or Parliament, as the case may be.

B. Preparation, Recommendation, Implementation and Monitoring of the School Development Plan (SDP)

- i) Every School Management Committee constituted under subsection [1] of section 21 shall prepare a School Development Plan every year in such manner as may be prescribed.
- ii) The School Management Committee shall prepare a School Development Plan at least three months before the end of the financial year in which it is first constituted under the Act.

- iii) The school development plan shall be a three year plan comprising three annual sub-plans and shall contain the following details
 - a) Estimates of class-wise enrolment for each year
 - b) Requirement of number of additional teachers calculated as per the norms given in schedule.
 - c) Physical requirements of additional infrastructure and equipment, as per the norms given in schedule.
 - d) Assess financial requirement and needs on the basis of the above, including for providing special training facility. Entitlements of children such as free text books and uniforms, and any other additional requirement for fulfilling the responsibilities of the school under the Act.
- iv) The School Development Plan shall be signed by the Chairperson or vice chairperson and convenor of the School Management Committee and submitted to the local authority before the end of the financial year in which it is prepared.

C. Monitoring of utilisation of grants received from appropriate Government, Local Authority, or any other source

- i) Prepare an annual account of receipts and expenditure of the school. Any money received by the said committee for the discharge of its functions under the RTE Act, shall be kept in a separate account to be audited annually.
- ii) The Annual account should be signed by the chairperson or vice-chairperson and convener of the said Committee and made available to the local authority within one month of their preparation.

D. Performance of other functions

The School Management Committee shall play any such roles, any functions as ordered by the Government from time to time.

The School Management Committee also performs the following functions.

1. **Policy Formulation :** SMC is involved in the formulation of policies and guidelines for the school. They contribute in decisions related to

academic programmes, student discipline and other operational matters, such as providing facilities for extra-curricular activities like sports, arts, club activities and community service programmes, providing support services like students' counselling, special coaching activities, celebrating students' achievements and efforts in educational and cocurricular activities etc.

2. **Teacher and Staff Appointments:** SMCs may be involved in the selection and appointment of teachers and other staff members. They participate in the recruitment process, ensuring that qualified and suitable individuals are hired.
3. **Monitoring and Evaluation:** SMCs play a role in monitoring the overall performance of the school. This includes reviewing academic achievements, attendance rates, and the implementation of educational programmes.
4. **Parental Involvement:** SMCs work to enhance parental involvement in school activities, recognizing the importance of a collaborative effort between parents and the school in the education of children. Parents' involvement

extends beyond merely sending their children to school regularly, it means they actively participate in their child's academic growth and behaviour.

4:09 Challenges of Teachers as Child Rights Practitioners

Children can be subjected to neglect, abuse, violence and exploitation anywhere. There is some abuse that may happen inside the school premises, while a lot of it, is what children suffer at home and in non-school environments. A child in your class may be a victim of violence / abuse / exploitation that happens outside the school. You cannot ignore it. Rather you must help the child. This too is possible only if you are able to identify that there is a problem and you spend time to understand it and explore possible solutions.

Always remember that your duty to protect children does not come to an end once you are out of the school premises. The life of a child who is out of the school system can be changed with your positive intervention. You just have to prepare yourself for it and know more about their problems

as well as what you can do to help. Once you are mentally prepared and equipped to tackle the problem, you will be able to do many things.

4:09:1 Duties of a Child-friendly Teacher

- ✦ Understand children's rights as human rights and create such awareness in the community as well.
- ✦ Be open to learning.
- ✦ Be a Friend, Philosopher and Guide to the child.
- ✦ Make the classes interesting and informative. Avoid one-way communication and give opportunities to children to come up with their doubts and queries.
- ✦ Learn to recognise and identify abuse, neglect, learning disorders and other not so visible disabilities.
- ✦ Create a relationship where children can express their views, concerns, anguish, fear etc. Try to engage with children in informal discussions.
- ✦ Be a good listener. Share and discuss various issues and problems which children are facing either in school or at home.

- ✦ Encourage children's participation in matters that affect their lives.
- ✦ Build children's capacities to participate effectively.
- ✦ Organise meetings of children with school authorities.
- ✦ Discuss child rights issues with the parents in the PTA meetings.
- ✦ Say NO to discrimination. Take active steps to reach out to children from minority and other discriminated groups.
- ✦ Ensure children are protected within the school as well as in the community, even if it requires calling the police and taking / facilitating legal action.
- ✦ Encourage education and participation of girls through creative measures within the classroom.
- ✦ All teachers can help in creating and strengthening a protective environment around children.
- ✦ Spend some time with the child privately, without

being imposing, humiliating and creating an embarrassing situation for the child.

- ✦ Help the child express her / his problem either through drawing and painting or by writing a story or simply talking to you or the school counsellor / social worker or to a friend in the class.

4:09:2 Challenges Teachers Face in Practicing Child Rights Protection

Teachers, as child rights practitioners face many hurdles and challenges in ensuring the protection of child rights within and outside the school. Some of the challenges faced by teachers in practising child rights protection are:

1. Inadequate (Child rights) Knowledge and Skills about Child Rights

Teachers could play their role in child rights protection only if they have adequate knowledge and appropriate skills in safeguarding child rights. But most of the teachers acquire very little theoretical knowledge in child rights during their teacher-training. As a measure of remedy,

teachers are to be provided with regular inservice training in child rights practices and skills too as they are presently being sent for upgradation of knowledge and skills in academic subjects.

2. Large sized Classes

In classrooms with forty or more students with diverse potentials and abilities, it becomes difficult for teachers to pay individual attention to students and resolve child rights issues of significant number of students.

3. Lack of Supportive Policies and Services in Schools

In most of the schools, child rights supportive policies and services are conspicuously absent. Without clear policies and guidance, teachers find it difficult to address child rights issues appropriately. Further, support services like counselling, special education and facilities for children with disabilities are also not available in most schools which hinder the ability of teachers to cope up with the diverse needs of the learners in the class.

4. Traditional Approach to Teaching and Disciplining Students

In our educational system, still achievement of students is measured by the scores they get in the examinations; teachers too believe in coaching students for examinations rather than teaching them to understand the subject content. Teachers still persist with the method of drill and practice. Students mostly learn through memorization and recitation. Further teachers find it difficult to complete the heavy and crowded syllabus within the limited time made available to them. Teachers generally follow subject-centered approach rather than student-centered approach. They believe in the traditional concept of discipline established by rules and regulations and any violation is punished by physical force. The old saying of 'Spare the rod and spoil the child' still operates in our schools. Modern Concept of 'constructive discipline' of making the students to discriminate the right from the wrong, ensuring social discipline through Cooperative / Collaborative learning and undertaking group projects, teaching social skills like cooperation and responsibility etc. go a long way in promoting self-discipline in students. Physical

punishments should be completely avoided as they do more harm than benefit to students.

5. Lack of Parental Involvement

Now-a-days parents are excessively worried about the academic achievements of their wards rather than their wholistic development. Further parents do not have any control over the behaviour of their children. They often expect the teachers to correct the behaviour of students. Without parental cooperation and involvement this is not possible. Further the involvement of parents and community is essential in promoting child rights. It is the shared responsibility of teachers, parents and community to make available safe and nurturing environment both in school and at home so that child rights could prosper.

Conclusion

In this Unit, the concept and importance of child-friendly schools, Role of teachers in safeguarding the rights of children in schools, Role of school in child protection, Importance of child protection policy in schools, Creating space and opportunity for children to participate and express their voices /opinions, Child rights clubs in schools and their importance, Possible child rights club

activities, Formation and management of child rights clubs, Role of school management Committees, Duties of a child-friendly teacher and challenges of teachers as child rights practitioners have been discussed elaborately.

Review Questions:

I. Objective Type Questions

- Which among the following statements is not true?
Child-friendly schools offer:
 - Healthy and safe environment to all pupils
 - Good quality teaching and learning process
 - Unbridled freedom to students
 - Accessibility to all students without any discrimination.

[Ans: (iii)]
- Which among the following statements is false?
An example for creating opportunity for children to express their voice is :
 - Making students debate important issues in the class
 - Inviting students to give suggestions to draw-up classroom rules

(iii) Making students to join in a conversation on school development matters

(iv) Making students to sit in a staff appointment committee [Ans: (iv)]

3. In the formation of 'School Management Committee' (SMC) recommended under the Right to Education Act 2009, what percentage of members should be parents?

(i) 50% (ii) 75%

(iii) 33.33% (iv) 20% [Ans: (ii)]

4. Which among the following statements is not true? 'Child Rights Clubs' (CRCs) :

(i) Provide a platform for students to protest incidence of abuse / neglect in the school

(ii) Make children to learn about their rights, risks and dangers

(iii) Make children know how to report incidence of abuse

(iv) Provide opportunity to students to share on issues affecting them in school [Ans: (i)]

5. Pick the correct answer from among the following: Patrons of 'Child Rights Clubs' (CRCs) are:

(i) Parents (ii) Teachers

(iii) Head Masters

(iv) Elected Member of a local body [Ans: (ii)]

II Short Answer Type Questions:

6. Explain the concept and importance of child-friendly schools. [Ans: 4:01 + 4:01:2 + 4:02]

7. What is a 'child-friendly school'? Explain the essential aspects of child-friendly school environment. [Ans: 4:01 + 4:01:1]

8. Explain the role and responsibilities of teachers in safeguarding the rights of children. [Ans: 4:03:1 + 4:03:2]

9. Explain the role of school in child protection. [Ans : 4:04]

10. Explain the importance of child protection policy in schools. [Ans: 4:05]

11. What are 'Child Rights Clubs' in schools? Explain their importance in schools. [Ans: 4:07:1 + 4:07:2]

12. What are 'Child Rights Clubs in Schools'? How could they be formed and managed? State the functions of child rights clubs in schools. [Ans : 4:07:1 + 4:07:4 + 4:07:5]

13. Explain briefly the role of the 'School Management Committees'. [Ans : 4:08]